

Roshan S/O Suryakant Raghtate vs Mrs. Poonam W/O Roshan Raghtate on 7 February, 2017

Author: Vasanti A Naik

Bench: Vasanti A Naik, V.M. Deshpande

FCA 89/15

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Judgment

IN THE HIGH COURT OF JUDICATURE AT BOMBAY,
NAGPUR BENCH, NAGPUR.

FAMILY COURT APPEAL No. 89/2015

Roshan S/o Suryakant Raghtate,
Aged about 33 years, Occu: Pvt. Service,
R/o 20, Pioneer Residency - Park,
Somalwada, Wardha Road, Nagpur.

APPELLANT

.....VERSUS.....

Mrs. Poonam W/o Roshan Raghtate,
Aged about 32 years, Occu: Service,
R/o C/o Smt.Radhika Bawankule,
Shri Ram Prasad Apartment, Plot No.167,
Nandanwan, Nagpur.

RESPONDENT

Shri H.G. Katekar, counsel for the appellant.
Shri Alok Daga, counsel for the respondent.

CORAM :SMT.VASANTI A NAIK AND
V.M. DESHPANDE, JJ.

DATE : 7 TH FEBRUARY, 2017.

ORAL JUDGMENT (PER : SMT.VASANTI A NAIK, J.)

By this family court appeal, the appellant challenges the judgment of the Family Court, Nagpur dated 03.02.2015 dismissing the petition filed by the appellant for a decree of divorce on the ground of cruelty.

2. Few facts giving rise to the family court appeal are stated thus:-

The appellant-husband (hereinafter referred to as "the husband" for the sake of convenience) had filed a petition against the FCA 89/15 2 Judgment respondent-wife (hereafter referred to as "the wife") under Section 13 (1) (i-a) (i-b) of the Hindu Marriage Act for a decree of divorce on the ground of cruelty and desertion. The

marriage between the parties was solemnized at Nagpur on 18.07.2008 at Talmale Sabhagruha. According to the husband, the behaviour of the wife was not good with the husband since the beginning and she had bluntly told him that she did not like him. It is pleaded that the wife behaved rudely with him and did not allow him to have any physical relations with her. It is pleaded that the wife always taunted him as he did not earn as per her expectation. It is pleaded that though the wife had not passed the B.Sc. Degree, she had falsely informed before the marriage was fixed that she had secured the degree of B.Sc. It is pleaded that the wife left the matrimonial home within 15 days of the marriage and started residing with her mother in her parental home. It is pleaded that though the husband had served notices on the wife on 09.09.2008 and 21.01.2009 that she should be agreeable for a decree of divorce by consent and as she was not ready to reside in the matrimonial home, despite his efforts, the wife did not reply to the same. It is pleaded that after the notice dated 09.09.2008 was served on the wife, the wife threatened the husband with dire consequences. It is pleaded that refusal on the part of wife to maintain physical relationship with the husband would be cruelty. It is pleaded that after the husband served a notice dated 21.01.2009, there was a meeting between the family members and it was decided that the FCA 89/15 3 Judgment marriage should be dissolved by a decree of divorce by consent. It is pleaded that when the draft for consent divorce was prepared, the wife did not sign the same. It is pleaded by amending the petition that after the divorce petition was filed by the husband, the wife filed a complaint against the husband on 05.12.2011 for an offence punishable under Section 498-A of the Penal Code read with Section 3 and 4 of the Dowry Prohibition Act. It is pleaded that false and baseless allegations were levelled against the husband and his family members in respect of illegal demand of a sum of Rs.10,00,000/-. It is pleaded that at the time of the marriage of the younger brother of the husband, the police entered the house of the husband and created a scene on the basis of the false complaint made by the wife in the police station. It is pleaded that the lodging of a false complaint by the wife against the husband and his family members amounts to cruelty. Since the wife did not return to the matrimonial home, the husband sought a decree of divorce on the ground of cruelty and desertion.

3. The wife filed the written statement and denied the claim of the husband. The wife pleaded that after the engagement and before the marriage, the husband and his family members started demanding dowry from the wife. It is pleaded that the husband belongs to a very rich and respected family and owns several houses and other landed properties. It is pleaded that after the engagement, FCA 89/15 4 Judgment the brother of the wife had given a sum of Rs.2,50,000/- in cash to the husband and the mother of the wife had given a sum of Rs.50,000/- by cheque to the husband. It is pleaded that after the receipt of the amount of Rs.2,50,000/- and Rs.50,000/-, the husband agreed to come to the venue of the marriage. It is stated that though the parents of the wife had to bear the expenses for the marriage, the husband had spent for the reception of the marriage, that was performed in their house only. It is pleaded that continuously the husband was demanding a sum of Rs.10,00,000/- from the wife towards dowry but since the financial position of the mother and the brother of the wife was not good, she was reluctant to pay the same. It is pleaded that the husband

and his family members started harassing the wife when she was not in a position to fulfill the demand of dowry and hence the wife was compelled to leave the matrimonial home and reside with her mother in the parental home. It is pleaded that initially the wife had not filed any complaint against the husband but subsequently when the harassment from the side of the husband continued, she was constrained to file a police complaint on 05.12.2011. It is pleaded that the wife was always begging before the husband and his family members that they should accommodate her in their family but instead of doing so, the husband filed the petition for a decree of divorce. The wife sought for the dismissal of the petition filed by the husband.

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4. On the aforesaid pleadings of the parties, the family court framed the issues. The husband examined himself and also examined his brother Rajat and his father Suryakant and the wife examined herself and examined Chanda Titre who was known to the family of the wife. On an appreciation of the evidence on record, the family court dismissed the petition filed by the husband. The judgment of the family court is challenged by the husband in this family court appeal.

5. Shri Katekar, the learned counsel for the husband submitted that the family court was not justified in dismissing the petition filed by the husband for a decree of divorce on the ground of cruelty and desertion. It is submitted that the wife had resided in the matrimonial home only for 15 days and then started residing in her parental home. It is submitted that though the husband made serious efforts to ensure that the wife resides in the matrimonial home, the wife refused to join his company. It is submitted that the wife was not behaving well with the husband right from the inception of the marriage. It is submitted that the husband was always informed by the wife that she did not like him. It is submitted that a false complaint was filed by the wife in the police station more than three years after the separation, only with a view to harass the husband. It is submitted that filing of the false complaint by the wife in the Police Station in respect of demand of dowry against the husband and his family members would amount to cruelty. It is submitted that had the FCA 89/15 6 Judgment husband or his family members demanded dowry from the wife, she would have filed a complaint within 15 days, after she left the matrimonial home. It is submitted that the wife not only filed the complaint for an offence punishable under the provisions of Section 498- A of the Penal Code read with Section 3 and 4 of the Dowry Prohibition Act against the husband and his family members but she filed the complaint at the time when the brother of the husband was getting married. It is submitted that as the brother of the husband was married on 29.11.2011, the wife should not have filed complaint on 05.12.2011 when she had waited for more than 3 years and when the complaint was filed three years after separation. It is submitted that the police authorities had entered the house of the husband at the time of the marriage of the husband's brother and this had caused great humiliation to the husband and his family members. It is submitted that this aspect of the matter, though is referred by the family court in the judgment, there is no discussion on this aspect in the reasons recorded by the family court from paragraph 34 of the judgment and onwards. It is stated that there is no discussion on the plea of the husband about lodging of a false complaint by the wife in the police station during the time when the brother of the husband was getting married. It is submitted that the allegations levelled by the wife in the complaint are false and baseless or else the wife would not have pleaded in the written statement that she was begging

before the husband and his family members that they should FCA 89/15 7 Judgment accommodate her in the matrimonial home. It is stated that if it is the case of the wife that she had left the matrimonial home because of the harassment of the husband and his family members, the case of the wife in the written statement that she had begged the husband and his family members to accommodate her in the matrimonial house would be contrary to her case that she was compelled to leave the house because of the harassment and beating. It is submitted that admittedly the wife has left the matrimonial home after 15 days of the marriage and the parties are not residing together for the past 9 years. It is submitted that in this background, the family court ought to have held that the husband was entitled to a decree of divorce, both on the ground of cruelty and desertion, more so when the wife had not filed the reply to the notices sent by the husband dated 09.09.2008 and 21.01.2009.

6. Shri Daga, the learned counsel for the wife, supported the judgment of the family court and submitted that the family court was justified in dismissing the petition filed by the husband for a decree of divorce. It is submitted that the wife did not file a police complaint in the beginning with a hope that she would return to the matrimonial home but since the harassment continued, the wife filed the complaint on 05.12.2011. It is submitted that the wife was compelled to leave the matrimonial home because of the harassment of the husband and his family members due to the non fulfillment of the demand of dowry by the FCA 89/15 8 Judgment relatives of the wife. It is submitted that Chanda Titre, the witness examined on behalf of the wife, has clearly stated in her cross-examination that the dispute arose in the Police Station between husband wife on account of Rs.10,00,000/-. It is submitted that since the husband had not satisfactorily proved the allegations levelled by him against the wife, the family court rightly held that the husband had failed to prove that the wife had deserted him and had treated him with cruelty.

7. On hearing the learned counsel for the parties and on a perusal of the record and proceedings, it appears that the following points arise for determination in this family court appeal.

- (i) Whether the husband proves that the wife has treated him with cruelty?
- (ii) Whether the husband proves that the wife has deserted him without any just and reasonable cause?
- (iii) Whether the husband is entitled to a decree of divorce?
- (iv) What order?

8. To answer the aforesaid points for determination, it would be necessary to consider the pleadings of the parties and the evidence tendered by them. We have already referred to the pleadings of the parties in the earlier part of the judgment. The husband had examined himself and had also examined his brother Rajat and his father Suryakant FCA 89/15 9 Judgment to substantiate his case. The husband had stated in his evidence that right from the inception of the marriage, the wife was not ready to maintain physical relationship with the husband by stating that she did not

like him. The husband had reiterated the other facts pleaded by him in his examination-in-chief. The husband admitted that the expenses of the marriage were shared equally. The husband admitted that after the wife went to the matrimonial home for the Rakhi festival, she did not return to the matrimonial home. The husband denied the suggestion that the wife always came to the matrimonial home but, he had not accepted her. The husband denied the suggestion that after marriage, they had demanded the articles, as dowry from the parents of the wife. The husband admitted that the father of the wife had expired before their marriage. The husband denied the suggestion that since 15.09.2008 till 05.12.2011, he and his family members harassed the wife due to the demand of dowry. The husband denied the suggestion that he earns a sum of Rs.60,000/- per month as he is an Architect.

9. The husband examined his brother Rajat, who reiterated the facts stated by the husband in his examination-in-chief, specially the facts in respect of filing of a false complaint by the wife against the husband and his family members for an offence punishable under Section 498-A of the Penal Code read with Sections 3 and 4 of the Dowry Prohibition Act after the husband filed the proceedings against the wife for a decree of FCA 89/15 10 Judgment divorce in the Family Court. Rajat stated in his examination-in-chief that the wife brought the police officers in the matrimonial home at the time of his marriage and created a scene. It is stated that the image of the husband and all his family members was lowered in the eyes of the public in view of the incident. It is pleaded that on 01.12.2011 also, when the family members were busy in religious ceremony that was performed after his marriage, the police officials came to the matrimonial house and, hence, the husband and all his family members had to rush to the Sessions Court for securing anticipatory bail. It is stated in the evidence of Rajat that the acts on the part of the wife has ruined the image and reputation of their entire family. Rajat was cross-examined on behalf of the wife. Rajat admitted in his cross-examination that he had not filed any document on record to show that on 29.11.2011 and on 01.12.2011, the police had come to their house, at the time of his marriage. Rajat admitted that the complaint was lodged by the wife against him and his family members on 05.12.2011. Rajat admitted that he and his family members had to secure anticipatory bail after the complaint was lodged by the wife against the husband and his family members. Rajat admitted that he had secured anticipatory bail prior to 05.12.2011. Rajat denied the suggestion that he and his family members used to beat the wife and had demanded a sum of Rupees Ten Lakhs from her towards dowry. Rajat denied the suggestion that the wife had lodged a complaint against him and his family members in view of the illegal demand by them. Rajat FCA 89/15 11 Judgment stated in his cross-examination that at the time of his marriage, the wife came with the police and the said incident affected and lowered the image of the husband and his family members in the eyes of the society.

10. The husband examined Suryakant, his father, in support of his case. The father of the husband also reiterated the facts stated by the husband and his brother in their examination-in-chief in respect of the filing of a false police complaint by the wife for an offence punishable under Section 498-A of the Penal Code read with Sections 3 and 4 of the Dowry Prohibition Act. Though the father of the husband was cross-examined on behalf of the wife, there is nothing in the cross-examination of the father of the husband that would falsify his statements in the examination-in-chief in respect of filing of a false police complaint by the wife against the husband and his family members. In fact,

there are no suggestions in this regard on behalf of the wife to the father of the husband.

11. The wife entered into the witness box and reiterated the facts stated by her in her written statement. She repeated the allegations made by her in regard to the illegal demand of dowry by the husband and his family members. The wife stated in her evidence that the husband and his family members demanded dowry from them after the engagement ceremony was performed and her brother and her mother were required FCA 89/15 12 Judgment to give a sum of Rs.2,50,000/- in cash and Rs.50,000/- by cheque to the husband and only then, the husband came to the venue of the marriage. The wife was cross-examined on behalf of the husband. The wife admitted in the cross-examination that she did not know whether the father of the husband had booked Hotel Centre Point for their engagement ceremony. The wife admitted that the engagement ceremony was performed at Hotel Centre Point, properly. The wife admitted that she went along with the family members of the husband for purchasing clothes and other articles for the performance of the marriage and as per her choice the clothes were purchased. The wife also admitted that from the engagement ceremony till the performance of marriage, there was no demand by the husband. The wife admitted that her marriage was performed as per the status of both the families. The wife admitted that after five days of the marriage, she went to her parental home and resided there for a week. The wife admitted that when she had gone to her parental home for celebrating Rakhi, she did not return to the matrimonial home. The wife admitted that a notice was served on her by the husband. The wife further admitted that a second notice was served on her by the husband. The wife admitted that she did not give reply to the notices at Exhibits 55 and 56. The wife admitted that she had lodged a complaint in the police station against the husband and his family members. The wife admitted that the father-in-law of her brother was serving in the police department and his name is Chintamani FCA 89/15 13 Judgment Padole. The wife denied the suggestion that though the husband had made several attempts to reconcile the matter, there was no response from her.

12. The wife examined Smt.Chanda Titre, who was known to both, the husband and the wife. She stated in her examination-in-chief that she had tried to settle the dispute between the husband and the wife. It is stated that though she made an enquiry from the husband and his parents regarding the problem or the bone of contention, they did not tell her anything about the problem. Chanda admitted that once she had gone to the house of the husband for settlement and on the other occasion she had gone to the police station. In the cross-examination, Chanda admitted that when she had gone to the police station, the wife and her brother were present there, so also Chintamani Padole, the father-in-law of the brother of the wife was also present in the police station. Chanda admitted that the dispute arose between the husband and the wife in the police station on account of the demand of Rupees Ten Lakhs.

13. It is apparent from the evidence tendered by the parties that the parties resided together only for a period of fifteen days after the solemnization of the marriage. The wife returned to her parental home and did not join the company of the husband after the Rakhi Festival was FCA 89/15 14 Judgment concluded. The parties are admittedly residing separately for nearly nine years. It is the case of the husband that the wife has left his company on the ground that she did not like him, whereas it is the case of the wife that she has left his company because she was harassed by the husband and his family members as her family members were not able to fulfill the demand of

dowry of Rs.10,00,000/-. It is not possible to believe the case of the wife that the husband and his family members made a demand for dowry of Rs.10,00,000/- from the wife, in the circumstances of the case. The wife has pleaded in her written statement and has also stated in her examination-in-chief that the husband belongs to a very rich and reputed family. It is the case of the wife that the husband owns several landed properties, whereas the wife belongs to a middle class family and the father of the wife had expired even before the marriage of the wife was solemnized. If that is so, it is difficult to believe that a rich and reputed husband would ask for dowry of Rs.10,00,000/- from the wife. It is further difficult to believe this as the husband had issued two notices to the wife, dated 09.09.2008 and 21.01.2009 asking her to agree for a divorce by mutual consent as she was not ready to join his company despite his sincere efforts. The wife has admittedly received these notices but, has not replied to the same. If the husband and his family members were demanding dowry from the family members of the wife, the wife would have surely replied the notice served by the husband on her in the year 2008 and 2009 and would have informed him that she had left his FCA 89/15 15 Judgment company because of the illegal demands made by him and his family members. The wife could have orally or vide replies to the notices, informed the husband and his family members that she could have returned to the matrimonial home if he and his family members change their way and did not harass her. There is nothing in the evidence of the wife to show that the wife had, at any point of time, made any phone calls to the husband after the separation asking him to mend his ways or that she was ready to reside with him and his family members, if they stopped harassing her for dowry. There is not a single communication on record from the side of the wife informing the husband that it was not proper on their part to make an illegal demand of dowry, though her family members were not in a position to fulfill the demand. The wife has admitted that after she went to her parental home to celebrate rakhi festival, she did not return to the matrimonial home. It appears from the perusal of the material on record, specially the evidence of the parties, that the wife has left the company of the husband without any just and reasonable excuse. There is nothing on record to show that the wife had ever made any attempt to join the company of the husband except a couple of stray statements in her examination-in-chief. Chanda, the witness examined on behalf of the wife, also did not state that the wife made efforts to ensure that she starts residing in the matrimonial home. It is necessary to note that the wife filed a police complaint against the husband and his family members more than three years from the date of FCA 89/15 16 Judgment her separation. It is the case of the wife that the husband and his family members were harassing the wife even after the separation. However, the wife has failed to explain as to how the husband and his family members harassed her after the parties were separated. It is apparent that after the husband filed the Hindu Marriage Petition for a decree of divorce on the ground of cruelty and desertion on 02.11.2011, the wife went to the police station on 05.11.2011 to lodge a complaint against the husband in respect of the illegal demands. We find that the wife does not have any regard for truth. The wife appears to have filed a false complaint against the husband only after realizing that the matrimonial ties could be severed in view of the petition filed by the husband for a decree of divorce. There are no concrete efforts on the part of the wife to join the company of the husband and there is no reference about the illegal demand by the husband in any conversations or communications between the parties after they separated. In fact, there is a suggestion from the side of the wife to the husband and even the other witnesses examined by him that the parties shared the marriage expenses. This clearly shows that the case of the wife that the husband was paid a sum of Rs.2,50,000/- towards dowry after the engagement and before the

marriage as he was not ready to come to the venue of the marriage, appears to be false. It would be necessary to notice the timing of filing the police complaint by the wife against the husband and his family members. The marriage of the brother of the husband, viz. Rajat, was FCA 89/15 17 Judgment scheduled on 29.11.2011. The wife had gone to the police station and to the Mahila Cell just at the relevant time and it appears from the evidence of the husband and his witnesses that the police officials had entered into the matrimonial home when relatives were present in the matrimonial home, for the marriage of Rajat. It appears that the husband and his family members were made to suffer great humiliation due to the presence of the police officials in the matrimonial home when the relatives and the friends were present in the house of the husband for the marriage of his brother Rajat. Though the complaint was actually lodged by the wife in the police station on 05.12.2011, it appears that the wife had tipped the police machinery at the time of the marriage of the brother of the husband, as a result of which, the police officers had entered into the house of the husband. It is further necessary to note that the wife had taken the help of the father-in-law of her brother, namely Shri Chintamani Padole, who is a police officer. Chanda has clearly admitted in her cross-examination that Chintamani Padole was present in the police station when the wife and her brother had been there to lodge the report. It is apparent from the aforesaid fact that the wife took advantage of her relations with Chintamani Padole and ensured that the husband was humiliated and troubled at the time when his brother Rajat was getting married. The case of the wife that she had filed the police complaint on 05.12.2011, whereas the brother of the husband got married on 29.11.2011 and, hence, there was no intention on her part to humiliate FCA 89/15 18 Judgment the husband and his family members cannot be believed. The act on the part of the wife of lodging a false police report against the husband and his family members, several years after separation has caused great mental cruelty to the husband and his family members. The husband and his family members were required to secure anticipatory bail in the matter and the same was secured even before the actual complaint was lodged by the wife in the police station on 05.12.2011. The act on the part of the wife of levelling false allegations in respect of demand of dowry and failing to prove the same by leading cogent evidence clearly shows that the wife has treated the husband with cruelty. Though it was suggested on behalf of the wife that Shri Ghatode was the mediator at the time of settlement of marriage between the wife and the husband, the wife has not examined Shri Ghatode to prove that there was any demand by the husband from her family members, for dowry. There is no cogent and convincing evidence from the side of the wife to prove that the husband had demanded dowry. We have already observed hereinabove, and we reiterate that in the circumstances of the case, when the wife's brother was working in a private company and her father had expired even before her marriage and when the husband was rich and reputed, a demand of dowry could not have been made. The parties have separated after residing together only for a period of fifteen days. The wife is residing away from the husband without any just or reasonable excuse. The notices served by the husband on the wife at Exhibits 55 and 56 are FCA 89/15 19 Judgment not replied by the wife. These notices clearly prove that though the husband had made efforts to ensure that the wife starts residing in the matrimonial home, the wife has not bothered to send the reply to the said notices. As already recorded hereinabove, there is no material, much less, any cogent material placed by the wife on record to show that she desired to join the company of the husband. It would be necessary to hold in the circumstances of the case that both the factum of separation and animus deserendi are proved, in this case. The Family Court committed a serious error in not considering the evidence of the parties in the right perspective. Though the Family

Court had referred to the allegations made by the husband in respect of the filing of a false complaint by the wife against the husband and his relatives for the offence punishable under Section 498-A of the Penal Code and Sections 3 and 4 of the Dowry Prohibition Act, the Family Court has failed to discuss this aspect in paragraph 36 of the judgment or even in the subsequent paragraphs, though the Family Court has discussed the other evidence of the parties and has recorded some other reasons for dismissing the Hindu Marriage petition filed by the husband in those paragraphs. It was necessary for the Family Court to have discussed the vital aspect in respect of the filing of a false police complaint by the wife after the husband had filed the Hindu Marriage Petition, and at the time of the marriage of his younger brother, that caused great mental trauma and humiliation to the husband and his entire family.

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14. Hence, for the reasons aforesaid, the family court appeal is allowed. The marriage solemnized between the parties on 18.07.2008 stands dissolved by a decree of divorce under Section 13(1)(ia) and (ib) of the Hindu Marriage Act. No costs.

JUDGE

JUDGE

Kahale/APTE